

BEFORE THE
FEDERAL MARITIME COMMISSION

FMC DOCKET NO. 21-10

ORANGE AVENUE EXPRESS, INC.
Complainant,

v.

HAPAG LLOYD AG
Respondent.

JOINT STATUS REPORT

As required by the briefing order dated May 16, 2022, Complainant Orange Avenue Express, Inc. (“OAE”) and Respondent Hapag-Lloyd, AG (Hapag) submit their joint status report:

Counsel for the parties met and conferred via email for the purposes of completing this joint status report.

A. **Protective Order:** The order entering the stipulated confidentiality agreement and protective order was served on March 15, 2022.

B. **Status of Discovery.** All initial discovery was propounded on March 11, 2022 as required by the Scheduling Order. Per Hapag’s unopposed motion, the deadline to provide responses to the initial set of discovery was continued to April 20, 2022.

1. **Interrogatories, Requests for admissions and Document productions.** OAE served interrogatories, requests for admissions and a request for production of documents, Hapag

served interrogatories and a document production request. Each party has provided their objections and responses, including production of thousands of pages of documents.

2. **Depositions:** Per the scheduling order, depositions could begin as early as June 20, 2022. However, the parties have not commenced depositions as of yet, but instead have focused on substantive settlement discussions. Also OAE has requested transcripts of depositions taken in Docket no. 21-09 as it is believed it may shorten or alleviate certain depositions in this matter.

C. **Proposed Continuance of Last Day to Serve Written Discovery:** Per the scheduling order, the last day to serve written discovery is July 15, 2022. Discovery must be completed by August 31, 2022. As mentioned the initial production of documents comprised of thousands of pages. Review of the initial discovery responses is continuing. Also the parties are engaged in substantive settlement discussions. It is the desire of the parties to preserve their resources as much as practical as settlement discussions continue. Thus the parties request a 14 day extension on the last day to serve written discovery to July 29, 2022. If served by July 29, 2022 discovery would still be completed by August 31, 2022 as previously ordered and will allow the parties to focus on settlement discussions in the immediate short term, while preserving enough time to serve additional written discovery if needed.

D. Oral Hearing:

The parties do not request an oral hearing at this time. However, if after review of briefs the Presiding Officer desires an oral hearing for submission of further evidence or oral argument, the parties do not object thereto. OAE has requested any live hearing to be conducted in Los Angeles County California. Hapag has requested any live hearing to be conducted in Washington D.C. Both parties do not object to a virtual hearing if needed.

E. Settlement: The parties are in substantive settlement discussions at this time.

Date: July 11, 2022

Respectfully submitted,

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CERTIFICATE OF SERVICE

I hereby certify that on July 11, 2022, the foregoing Joint Status Report has been served upon all interested persons and parties by electronic means pursuant to the below list.

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Presiding Administrative Law Judge

Erin M. Wirth, Chief Administrative Law Judge

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